Ex Tempore

TAFADZWA MUSHUNJE
and
ASSOCIATED NEWSPAPERS OF ZIMBABWE (PRIVATE) LIMITED
and
TARISAI MACHAKAIRE

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 28 October, 17 November 2025 & 23 January 2026

Special Plea - Prescription

T Gombiro for the plaintiff
A Muchadehama for the defendants

DEME J: On 17 November 2025, I upheld the special plea of prescription raised by the Defendants and consequently dismissed the Plaintiff's claim with costs. The Plaintiff requested the reasons for the order. These are they.

The plaintiff filed summons claiming the following relief against the defendants:

(a) Payment of US$100 000.00 (One hundred thousand United States Dollars) or zig equivalent at the applicable official exchange rate as at the date of payment.
(b) Interest on the said amount of $100 000.00 at the prescribed rate of 5% per annum from the 26th of February 2016, being the date of cause of action to the date of full payment.
(c) Cost of suit.

It is the plaintiff's case that the claim arises from events that occurred in 2016 wherein the plaintiff suffered injury to her good name and reputation which ensued as a result of the publication by the defendants of defamatory material in the 1st defendant's Daily News newspaper dated 26 November 2016. In the publication, it was written that the plaintiff had infected her step-son, a minor child, with HIV. The article also alleged that the plaintiff made the said minor child drink her urine and also assaulted the child. It is the plaintiff's case that although the claim arose in 2016, the cause of action was the subject of litigation which was

pending in the courts until June 2022, when the matter was disposed of without a determination on the merits.

The defendants raised a special plea of prescription in accordance with Rule 42 of the High Court Rules, 2021. Mr. *Muchadehama* submitted that the facts giving rise to the special plea of prescription are common cause. He submitted that it is common cause that the cause of action arose in February 2016, that the plaintiff launched a prior claim similar to the present one, which was dismissed by the High Court. It is further common cause that the plaintiff appealed to the Supreme Court, and the matter was struck from the roll in June 2022. It was submitted that the present application was served on the defendants in December 2024, whereas the cause of action arose in 2016, which makes it a period of more than eight years. Mr. *Muchadehama* submitted that the only issue before the court is whether or not there was judicial interruption as contemplated by section 19 of the Prescription Act [*Chapter 8:11*]. Mr. *Muchadehama* referred to the case of *Musindo v Kazambara & Anor* HH234-24 in his explanation of the meaning of judicial interruption. He stated that a plaintiff must institute proceedings and prosecute to final judgment in their favour, that is when prescription can be interrupted. He submitted that the fact that the plaintiff *in casu* instituted prior proceedings is irrelevant because the plaintiff did not prosecute to finality in her favour following the decisions of this court and the Supreme Court. It was therefore his submission that those two decisions did not interrupt the running of prescription.

Mr Muchadehama submitted that when a matter is struck from the roll there is nothing before the court, it ought not to have been there in the first place. He relied on the case of *Matanhire v BP Shell Marketing Services (Pvt) Ltd* SC113-04 and Practice Directive 3 of 2013 paragraph 4. On costs, defendants' counsel submitted that after the plaintiff instituted the present proceedings, the plaintiff's counsel was advised that the plaintiff's claim had prescribed and it was further stated in the pleadings but the plaintiff ignored this call. Mr. Muchadehama went on to submit that the plaintiff has proceeded on this path recklessly therefore she must be visited with costs on a higher scale as she has no case and seeks only to harass the defendants. He therefore prayed that the special plea of prescription be upheld with costs on a legal practitioner and client scale.

In replication, Mr. *Gombiro* submitted that the plaintiff's claim has not prescribed, he stated that recourse to the resolution of the validity of the plea must be had to the interpretation

of section 19 of the Prescription Act. Mr. *Gombiro* asserted that section 19(2) as read with section 19(1)(f) states that prescription begins to run when a litigant institutes legal process and serves a defendant. He argued that in the case of *Zhanje v Gambe & Anor* HH381-24, the court held that a final judgment is one that is determined on the merits. He went on to say that it is apparent that the plaintiff does not have a final judgment as the Supreme Court corrected not only the parties but also the High Court to the effect that the parties ought not to have gone to trial as the pleadings were excipiable. He further submitted that section 19 does not concern itself with the validity of the document that commences an action, but that there were documents. He stated that in 2016, summons were instituted, with a series of exchanges of pleadings, therefore the validity of documents does not affect prescription.

It was Mr. *Gombiro's* submission that the plaintiff ought to have been given a chance to amend her pleadings. The court was urged to use the purposive interpretation of section 19, wherein the purpose of section 19 is to protect parties from a person who is slow to assert their rights. He argued that the plaintiff has demonstrated her eagerness and diligence in pursuing her matter as she believes she has a proper claim to be deliberated on. He further submitted that the Supreme Court ruled that there was a procedural error, and that is why the plaintiff immediately mounted a fresh application. He stressed that there was no determination on the merits.

Mr. *Gombiro* submitted that the plaintiff has prospects of success if given an opportunity to argue her matter on the merits therefore the court was urged to mete out justice. Counsel relied on the case of *Mavedzenge v Minister of Justice, Legal and Parliamentary Affairs & Ors* CCZ05-18 wherein the court held that the purposive interpretation must be used to give effect to public policy. He went on to submit that in this matter public policy consideration is that litigants should be protected and given an opportunity to litigate to final judgment. Counsel accepted that it has been more than eight years however the plaintiff has remained determined. He therefore submitted that this is not an appropriate matter to shut the door on the plaintiff permanently. Counsel conceded that there is currently no case law on the purposive interpretation of section 19 that supports the plaintiff's position.

Upon being queried on whether a nullity interrupts prescription Mr. Gombiro submitted that an ordinary interpretation does not concern itself with the validity of a process, the issue is that there was a commencement of an action thus an equitable decision would be to allow the

matter to proceed. When I queried the plaintiff's counsel on the fact that the plaintiff abandoned the original matter and is instead pursuing a new matter Mr. Gombiro responded that this did not amount to abandonment as there was no intention to abandon the matter. He further stated that section 19 says a litigant should get a final judgment and the plaintiff did not have control over the decision of the Supreme Court. He further maintained that the Prescription Act seeks to restrict litigants that are not diligent, however the plaintiff was impeded by the error of the High Court.

I queried Mr. *Gombiro* on the effect of *Chiwawa v Apostolos Mutzuris & Ors* SC4-11 to which he confessed that he had not had occasion to read the case. The matter was stood down to allow him to peruse the case. Upon resuming the matter Mr. *Gombiro* submitted that the decision elevates the completion of proceedings to final judgment. If a litigant is to lose a matter that litigant is barred from bringing the matter afresh as the principle of *res judicata* will apply. He submitted that in the present matter *res judicata* does not apply and that this court has an opportunity to set a precedence on this matter because the law is silent on what happens when one does not have a decision on the merits where she has been diligent in pursuing her matter. Mr. *Gombiro* submitted that in the case of *Mushunje v Zimbabwe Newspapers (1980) Ltd* SC119-20 the plaintiff was successful so this shows that the plaintiff has prospects of success. The court was therefore invited to judge on these unique circumstances as it would not be just and equitable to bar the plaintiff in the circumstances. He closed off by saying that had the High Court observed the issue of an exception whilst the matter was before it the pleadings would have been amended.

In reply Mr. Muchadehama submitted that all the facts are common cause, the point of divergence revolves around the issue of whether or not prescription was interrupted. He further submitted that the meaning of section 19 has already been determined in the case of *Musindo supra* which is clear that a plaintiff is required to prosecute its matter to final judgment in their favour. He submitted that you cannot file pleadings in vain, therefore if you abandon or lose your case prescription will not be interrupted. Mr. Muchadehama asserted that before the court is a plaintiff who did not prosecute their case under case number HCH2579/16 in her favour. In the High Court she lost her matter, this did not interrupt prescription; in the Supreme Court she lost again so there is no interruption of prescription. He submitted that the matter is disposable on the

interpretation of section 19. He further submitted that the plaintiff's counsel did not address the court on the effect of the striking off of the matter from the roll by the Supreme Court. Mr. Muchadehama asserted that the plaintiff has not given case law that interprets judicial interruption in the manner that she suggests. He went to say that there is reference to the Supreme Court case of *Mushunje supra* but those are different publications. On the issue that the High Court missed that the summons were excipiable it was submitted that this was specifically raised by the defendants and the claimant refused to acknowledge this and insisted that her summons were not excipiable. Mr. Muchadehama further stated that the plaintiff's counsel has not stated when prescription was interrupted, and she has not relented even in light of knowing that her arguments are not supported. Counsel went on to say that this is an abuse of court process and should be reflected with an appropriate order of costs.

Mr. Muchadehama therefore prayed that the special plea of prescription be upheld with costs on a legal practitioner and client scale.

On the initial hearing of this matter, it became common cause that parties were in agreement on the factual issues. A disagreement arose on the legal issues. I directed the parties to develop the statement of agreed facts. In terms of the statement of agreed facts, the following issues were recorded:

> "1. The parties agreed that the claim for determination damages (sic) constitutes a debt in terms of section 2 of the Prescription Act (Chapter 8:11).
> 2. The parties agreed that the cause of action related to the debt claimed against the defendant (sic) arose on the 26th of February 2016.
> 3. The parties agreed that there was a claim mounted as an action by the Plaintiff under HCH2579/16.
> 4. The parties agreed that litigation resulting from the claim persisted into the Supreme Court up until the apex court made a determination in case number SC62/22 on the 9th of June 2022.
> 5. The parties agreed that the Supreme Court order was as follows,
> "5.1. The matter is struck off the roll with costs.
> 5.2 In the exercise if (sic) this court's review powers under S25(2) of the Supreme Court Act Chapter 7:13, the proceedings of the High Court in HC2579/16 are hereby set aside and substituted with the following:
> "The Plaintiff's claim is hereby struck off the roll with costs."
> 6. The parties agreed that the Plaintiff instituted the current suit in HCH5575/24 claiming defamation damages and served summons and declaration on the defendants on the 18th of December 2024."

The parties agreed that the following issues require to be determined:

> "1. Whether or not the Plaintiff's current claim has prescribed?

> 2. The level of costs."
> What remains for the court to decide is whether or not there was judicial interruption of prescription. The facts that are common cause have been canvassed above and I will not delve into them here. Section 19(1)(f) of the Prescription Act defines what constitutes process that can interrupt prescription, it reads as follows:
> "19. Judicial interruption of prescription
> (1) In this section—
> "process" includes—
> ……..
> (f) any document whereby legal proceedings are commenced."

It is a well-established fact that for a process to be before the court, it should be valid. The initial action was instituted in 2016, then dismissed by the High Court order of Zhou J in HH47-17. When the plaintiff appealed to the Supreme Court, the appeal was struck from the roll, and the court further used its review powers to substitute the High Court decision. The Supreme Court ruled that the High Court ought not to have dismissed the case but instead should have struck it from the roll because the summons was defective. Following this, the plaintiff issued new summons, which is the subject of the present matter, arguing that the earlier matter interrupted prescription. In the case of *Mnyulwa v Mawoneke* HCC41-24, Muzofa J stated as follows:

> "In *Du Bruyn v Joubert* 1982 (4) SA 69, the court after setting out the requirements of interruption it noted that for process to interrupt prescription, **the claimant is required to prosecute the claim to final judgment and not abandon the matter (my emphasis).** Also that if the judgment is set aside for whatever reason, interruption will not take place."

In casu, the Plaintiff's claim in HC2579/16 was set aside by the Supreme Court. The reason for the setting aside is irrelevant according to the case of *Mnyulwa v Mawoneke supra*. What is apparent is that the present matter is different from the matter in HC2579/16. The Plaintiff is pursuing a different case. By so doing, the Plaintiff abandoned the matter in case number HC2579/16. The Plaintiff failed to successfully prosecute the matter in HC2579/16 to final judgment. The abandoned matter cannot interrupt prescription. I would have ruled otherwise if the Plaintiff was still pursuing the same case in HC2579/16. This position is fortified by Section 19(3) of the Prescription Act which provides that:

> "(3) Unless the debtor acknowledges liability, the interruption of prescription in terms of subsection (2) shall lapse and the running of prescription shall not be deemed to have been interrupted, if the creditor –

(a) does not successfully prosecute his claim under the process in question to final judgment."

The issuing of new summons effectively means the old summons was abandoned. The law is clear that a plaintiff must not abandon their matter.

For a process to be before the court, it should be valid. There was no process before the court in HC2579/16 as it was a nullity, so it could not have interrupted the running of prescription. The new matter is consequently affected by the special plea of prescription.

The defendants prayed for costs on a higher scale as they argued that the plaintiff was aware, at the time of filing that her claim had prescribed. The courts are loathe to grant costs on a punitive scale, except where necessary, as this would deter litigants from prosecuting their matters. It is for this reason that I granted costs on an ordinary scale.

In the circumstances, I made the following order:

1. The special plea of prescription be and is hereby upheld.
2. Consequently, the plaintiff's claim be and is hereby dismissed with costs.

DEME J……

Chinwamurombe Legal Practice, applicant's legal practitioners
Mbizo, Muchadehama & Makoni, respondents' legal practitioners